



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2720: prostitution; assessment; anti-human trafficking fund

BLISS FLOOR AMENDMENT

1. Permits persons convicted of prostitution, who were sex trafficking victims, to seal all records related to their arrest, conviction and sentence.
2. Excludes the sealed records, of a sex trafficking victim convicted of prostitution, from being used by the courts as a historical prior or for other such purposes.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2720
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 12-116.13, to read:

4 12-116.13. Assessment; anti-human trafficking grant fund

5 A. IN ADDITION TO ANY OTHER ASSESSMENT, IF A PERSON IS CONVICTED OF
6 A VIOLATION OF SECTION 13-3214, SUBSECTION A, PARAGRAPH 2, THE COURT SHALL
7 ORDER THE PERSON TO PAY AN ASSESSMENT OF \$200. THE ASSESSMENT SHALL NOT
8 BE WAIVED AND IS NOT SUBJECT TO A SURCHARGE.

9 B. THE COURT SHALL TRANSMIT THE ASSESSMENTS COLLECTED PURSUANT TO
10 THIS SECTION TO THE COUNTY TREASURER.

11 C. THE COUNTY TREASURER SHALL TRANSMIT THE ASSESSMENTS TO THE STATE
12 TREASURER. THE STATE TREASURER SHALL DEPOSIT THE ASSESSMENTS IN THE
13 ANTI-HUMAN TRAFFICKING GRANT FUND ESTABLISHED BY SECTION 41-1736.

14 <<Sec. 2. Section 13-909, Arizona Revised Statutes, is amended to
15 read:

16 13-909. Vacating the conviction of a sex trafficking victim;
17 requirements

18 A. A person who was convicted of a violation of section 13-3214 or
19 a city or town ordinance that has the same or substantially similar
20 elements as section 13-3214 may apply to the court that pronounced
21 sentence to vacate the person's conviction. The court shall grant the
22 application and vacate the conviction if the court finds by clear and
23 convincing evidence that the person's participation in the offense was a
24 direct result of being a victim of sex trafficking pursuant to section
25 13-1307 or 13-3212.

26 B. If the prosecutor does not oppose the application, the court may
27 grant the application and vacate the conviction without a hearing.

1 C. If the prosecutor opposes the application, the court shall hold
2 a hearing on the application.

3 D. On vacating the conviction, the court shall:

4 1. Release the applicant from all penalties and disabilities
5 resulting from the conviction.

6 2. Enter an order [SEALING ALL RECORDS THAT RELATE TO THE
7 APPLICANT'S ARREST, CONVICTION AND SENTENCE AND] that a notation be made
8 in the court file and in law enforcement and prosecution records that the
9 conviction has been vacated and the person was the victim of a crime.

10 3. Transmit the order vacating the conviction to the arresting
11 agency, the prosecutor and the department of public safety.

12 E. A conviction vacated pursuant to this section does not qualify
13 as a historical prior felony conviction and cannot be alleged for any
14 purpose pursuant to section 13-703 or 13-707.

15 F. Except on an application for employment that requires a
16 fingerprint clearance card pursuant to title 41, chapter 12, article 3.1,
17 a person whose conviction is vacated under this section may in all
18 instances state that the person has never been arrested for, charged with
19 or convicted of the crime that is the subject of the conviction, including
20 in response to questions on employment, housing, financial aid or loan
21 applications.>>

22 <<Sec. 3. Section 13-911, Arizona Revised Statutes, is amended to
23 read:

24 13-911. Sealing of arrest, conviction and sentencing records;
25 requirements; fee; appeal; definition

26 A. A person may file a petition to seal all case records related to
27 a criminal offense if the person was:

28 1. Convicted of a criminal offense and has completed all of the
29 terms and conditions of the sentence that was imposed by the court,
30 including the payment of all monetary obligations and restitution to all
31 victims.

32 2. Charged with a criminal offense and the charge was subsequently
33 dismissed or resulted in a not guilty verdict at a trial.

34 3. Arrested for a criminal offense and no charges were filed.

35 B. All case records[, EXCEPT THOSE VACATED PURSUANT TO SECTION 13-
36 909.] that are sealed pursuant to this section may be:

37 1. Alleged as an element of an offense.

38 2. Used as a historical prior felony conviction.

39 3. Admissible for impeaching any party or witness in a subsequent
40 trial.

41 4. Used to enhance the sentence for a subsequent felony.

42 5. Used to enhance the sentence pursuant to sections 28-1381 and
43 28-1382.

44 6. Pledged and proved in any subsequent prosecution of the person
45 by this state or a political subdivision of this state.

46 7. Used as a conviction if the conviction would be admissible if
47 the conviction was not sealed.

1 C. The person shall file a petition to seal all case records in one
2 of the following:

3 1. The court in which the person was convicted of an offense.

4 2. The court in which an indictment, information, criminal citation
5 or complaint against the person was filed and the charges were dismissed,
6 the person was found not guilty or the person's conviction was vacated,
7 except that if the complaint was filed in a justice court and a subsequent
8 information was filed, the petition must be filed in the superior court.

9 3. The court in which the person had an initial appearance if
10 charges were not filed.

11 4. The superior court in the county where a person was arrested if
12 the person did not have an initial appearance and no charges were filed.

13 D. The court may not grant or deny a petition to seal a person's
14 case records until sixty calendar days after the court receives the
15 petition unless the court receives notice that both the prosecutor and all
16 victims who have made a request for postconviction notice do not object to
17 the petition. Unless the petitioner, prosecutor or victim requests a
18 hearing, the court may grant or deny a petition to seal case records
19 without a hearing. The court may dismiss a petition that does not meet
20 the requirements prescribed in this section without a hearing. The court
21 shall grant the petition if the court determines that granting the
22 petition is in the best interests of the petitioner and the public's
23 safety. The clerk of the court shall provide a copy of the petition to
24 seal case records to the prosecutor. The prosecutor may respond to the
25 petition and request a hearing. The victim has a right to be present and
26 heard at any proceeding in which the defendant has filed a petition to
27 seal case records. If the victim has made a request for postconviction
28 notice, the prosecutor shall provide the victim with notice of the
29 defendant's petition and of the victim's rights under this section.

30 E. At the time of sentencing, the court shall inform the person on
31 the record that the person may be eligible to petition the court for an
32 order that seals all case records of the person's arrest, conviction and
33 sentence that are related to the offense pursuant to this section and
34 shall provide this notice in writing. A person who was convicted of any
35 eligible offense may petition the court to seal the person's records of
36 arrest, conviction and sentence after the person completes all of the
37 nonmonetary terms and conditions of the person's sentence ordered by the
38 court, and the following period of time has passed since the person
39 completed the nonmonetary conditions of probation or sentence and was
40 discharged by the court:

41 1. Ten years for a class 2 or 3 felony.

42 2. Five years for a class 4, 5 or 6 felony.

43 3. Three years for a class 1 misdemeanor.

44 4. Two years for a class 2 or 3 misdemeanor.

45 [5. IMMEDIATELY FOR AN OFFENSE VACATED PURSUANT TO SECTION 13-909.]

46 F. A person whose case records have been sealed pursuant to
47 subsection E of this section and who commits a subsequent felony offense

1 may petition the court pursuant to subsection E of this section to seal
2 the person's records of arrest, conviction and sentence relating to the
3 subsequent felony offense after the applicable period of time prescribed
4 in subsection E of this section for the subsequent felony offense has
5 expired and an additional five years have passed.

6 G. A petitioner is required to have paid all fines, fees and
7 restitution ordered by the court at the time of filing the petition to be
8 eligible to seal case records pursuant to this section.

9 H. After a petition to seal case records is filed, the court shall
10 notify the department of public safety and request the department to
11 prepare and submit a report to the court that includes all of the
12 petitioner's state and federal arrests, prosecutions and convictions and
13 any other information that the court requests or that the department
14 believes will assist the court in making its determination. The director
15 may charge the petitioner a fee that is determined by the director for the
16 investigation unless the petitioner is indigent or has been found not
17 guilty or the case was dismissed or not prosecuted and the petition is
18 filed pursuant to subsection C, paragraph 2 or 3 of this section.

19 I. If the court grants a petition to seal case records:

20 1. The court shall issue an order sealing all records relating to
21 the petitioner's arrest, conviction and sentence and directing the clerk
22 of the court to notify the department of public safety and the prosecutor
23 of the sealing order.

24 2. On order of a court, the clerk of the court shall seal all case
25 records relating to the petitioner's arrest, conviction and sentence. A
26 court order to seal case records pursuant to this section is subject only
27 to the disclosure requirements in this section and shall be treated
28 differently than a record that is sealed pursuant to any other statute or
29 court rule. The clerk shall create and manage a system for sealing case
30 records pursuant to this section and for providing sealed case records to
31 an entity or person that is listed in subsection J of this section and
32 that requests the record. On the request of an entity or person listed in
33 subsection J of this section, the clerk shall provide the entity or person
34 with any sealed case records. The clerk may not provide sealed case
35 records pursuant to this section to any person or entity that is not
36 listed in subsection J of this section.

37 3. The department of public safety shall designate the case records
38 as sealed within the department's records and inform all appropriate state
39 and federal law enforcement agencies of the sealing. The department may
40 not share or provide sealed case records with any person or entity or for
41 any purpose that is not listed in subsections B and J of this section.
42 The department may charge the successful petitioner a fee determined by
43 the director to research and correct the petitioner's criminal history
44 record unless the petitioner is indigent or has been found not guilty or
45 the case has been dismissed or not prosecuted and the petition is filed
46 pursuant to subsection C, paragraph 2 or 3 of this section.

1 4. The arresting and prosecuting agencies shall clearly identify in
2 each agency's files and electronic records that the petitioner's arrest or
3 conviction and sentence records are sealed.

4 5. A person whose records are sealed pursuant to this section may
5 state, in all instances, that the person has never been arrested for,
6 charged with or convicted of the crime that is the subject of the arrest
7 or conviction, including in response to questions on employment, housing,
8 financial aid or loan applications unless any of the following applies:

9 (a) The person is submitting an application that requires a
10 fingerprint clearance card pursuant to title 41, chapter 12, article 3.1.

11 (b) The sealed case records involved a class 2 or class 3 felony
12 violation of chapter 34 of this title.

13 (c) The sealed case records involved burglary under section
14 13-1506, 13-1507 or 13-1508, theft under section 13-1802 or organized
15 retail theft under section 13-1819 from a residential or nonresidential
16 structure and the person is applying for a job that requires entering into
17 and performing services inside of a residential structure.

18 (d) The sealed case records involved child abuse under section
19 13-3623 or aggravated assault under section 13-1204 and the person is
20 applying for a job involving supervising, educating or administering care
21 to a minor.

22 (e) The sealed case records involved vulnerable adult abuse under
23 section 13-3623 and the person is applying for a job involving supervising
24 or administering care to a vulnerable adult or a person who is at least
25 sixty-five years of age.

26 (f) The sealed case records involved a violation of section
27 5-395.01, 5-396, 5-397, 13-1814, 28-1381, 28-1382, 28-1383, 28-8282,
28 28-8284, 28-8286, 28-8287 or 28-8288 and the person is applying for a job
29 involving the commercial or private operation of a motor vehicle, boat or
30 airplane.

31 (g) The sealed case records involved a violation of chapter 18, 19,
32 20, 21, 22 or 23 of this title or telecommunication fraud under section
33 13-3707 and the person is applying for a job involving accounting,
34 overseeing, transporting, handling or managing another person's money or
35 financial assets.

36 (h) The person is applying for a position with a law enforcement
37 agency, a prosecutor's office, a court, a probation department, a child
38 welfare agency as defined in section 8-501, the department of child
39 safety, the department of juvenile corrections or the state department of
40 corrections.

41 (i) The person is undergoing a background check for the placement
42 with that person of a child who is in the custody of the department of
43 child safety.

44 (j) The disclosure is required by a state or federal law.

45 (k) The disclosure is required to comply with program integrity
46 provisions of medicare, medicaid or any other federal health care program.

1 6. The person's employer is not liable for hiring or contracting
2 with the person as prescribed in section 12-558.03.

3 J. If the person's case records are sealed pursuant to this
4 section, the records shall be made available for the purposes listed in
5 subsection B of this section and to the following:

6 1. The person whose records are sealed and any attorney who has
7 filed a notice of appearance on behalf of the person whose records are
8 sealed.

9 2. The victim in the case if the victim has exercised victims'
10 rights pursuant to section 13-4414.

11 3. Any of the following if the purpose relates to the operation of
12 the requesting party's official duties or internal hiring practices, or
13 both:

14 (a) A law enforcement agency.

15 (b) A prosecuting agency. On request of a person who is charged
16 with a criminal offense or that person's attorney of record, a prosecuting
17 agency shall provide the sealed case records of any person whom the
18 prosecuting agency intends to call as a witness in that person's
19 prosecution.

20 (c) A probation department or any agency that is responsible for
21 the preparation of a presentence report.

22 (d) A court.

23 (e) The department of child safety or a child welfare agency as
24 defined in section 8-501.

25 (f) The department of juvenile corrections.

26 (g) The state department of corrections or any other correctional
27 facility in this state.

28 (h) The clerk of the court or any department that is responsible
29 for maintaining court records.

30 K. This section does not require the supreme court or the court of
31 appeals to seal any record.

32 L. If the court denies a petition to seal case records, a person
33 may not file a new petition until three years after the date of the
34 denial.

35 M. A conviction for an offense that is committed in another
36 jurisdiction and that if committed in this state would not constitute an
37 offense in this state may not be used against the petitioner or prohibit
38 the petitioner from having a record sealed. For the purposes of this
39 section, the classification of an offense committed in another
40 jurisdiction has the classification that the offense would have if
41 committed in this state.

42 N. If the petitioner has a charge pending or is charged with an
43 offense after filing a petition to seal case records pursuant to
44 subsection C, paragraph 3 or 4 of this section and the charge could result
45 in a conviction that cannot be sealed or that could extend the time to
46 file a petition to seal case records, the court may not grant or deny the
47 petition until the court disposes of that charge.

1 0. The following offenses are not eligible to be sealed pursuant to
2 this section:

3 1. A dangerous offense as defined in section 13-105.

4 2. A dangerous crime against children as defined in section 13-705.

5 3. A serious offense or violent or aggravated felony as defined in
6 section 13-706.

7 4. Any offense that has either of the following as an element of
8 the offense:

9 (a) The discharge, use or threatening exhibition of a deadly weapon
10 or dangerous instrument.

11 (b) The knowing infliction of serious physical injury on another
12 person.

13 5. Sex trafficking pursuant to section 13-1307.

14 6. A class 2, 3, 4 or 5 felony offense that is included in chapter
15 14 or 35.1 of this title.

16 P. This section does not affect any of the following:

17 1. The right of the person whose case records are sealed to appeal
18 the conviction or sentence or to rely on it in bar of any subsequent
19 proceeding for the same offense.

20 2. The right of a law enforcement agency to maintain an arrest and
21 conviction record and to communicate information regarding the sealed
22 record of arrest or conviction to prosecuting agencies, courts, probation
23 departments and other law enforcement agencies for a purpose listed in
24 subsection J of this section or in defense of a civil action that arises
25 out of the facts of the arrest or to the Arizona peace officer standards
26 and training board solely to assist the board in determining the fitness
27 of a person to serve as a peace officer, except that in any of these cases
28 the information may not be disclosed to any person or entity that is not
29 listed in subsection J of this section.

30 3. The department of public safety or the board of fingerprinting
31 from considering a conviction that is sealed pursuant to this section when
32 evaluating an application for a fingerprint clearance card pursuant to
33 section 41-1758.03 or 41-1758.07, except that the board of fingerprinting
34 shall consider sealed case records as a mitigating circumstance in
35 determining whether to grant a good cause exception pursuant to section
36 41-619.55.

37 4. A court from issuing a lifetime injunction pursuant to section
38 13-719 or the validity of a lifetime injunction that was issued pursuant
39 to section 13-719.

40 Q. For the purposes of this section, "case records" means all
41 records that pertain to a person's arrest, conviction and sentence for a
42 particular offense and that may be sealed pursuant to this section. >>

43 Sec. 4. Section 13-3214, Arizona Revised Statutes, is amended to
44 read:

45 13-3214. Prostitution; classification

46 A. It is unlawful for a person to knowingly:

1 1. Engage in ~~prostitution~~ OR AGREE OR OFFER TO ENGAGE IN SEXUAL
2 CONDUCT UNDER A FEE ARRANGEMENT WITH ANY PERSON FOR MONEY OR OTHER
3 VALUABLE CONSIDERATION.

4 2. PAY FOR OR AGREE OR OFFER TO PAY FOR SEXUAL CONDUCT UNDER A FEE
5 ARRANGEMENT WITH ANY PERSON FOR MONEY OR ANY OTHER VALUABLE CONSIDERATION.

6 B. This section does not prohibit cities or towns from enacting and
7 enforcing ordinances to suppress and prohibit prostitution that provide a
8 punishment for misdemeanor violations that is at least as stringent as
9 provided in this section.

10 C. For the purposes of sentencing under this section, a previous
11 violation of any city or town ordinance that prohibits prostitution and
12 that has the same or substantially similar elements as this section shall
13 be deemed to be a previous violation of this section.

14 D. It is an affirmative defense to a prosecution under this section
15 that the defendant committed the acts constituting prostitution as a
16 direct result of being a victim of sex trafficking.

17 E. A person who violates SUBSECTION A, PARAGRAPH 1 OF this section
18 is guilty of a class 1 misdemeanor, except that:

19 1. A person who is convicted of a first violation of this section
20 shall be sentenced to serve not less than fifteen consecutive days in jail
21 and is not eligible for probation or suspension of execution of sentence
22 until the entire sentence is served.

23 2. A person who is convicted of a second violation of this section
24 shall be sentenced to serve not less than thirty consecutive days in jail
25 and is not eligible for probation or suspension of execution of sentence
26 until the entire sentence is served.

27 3. A person who is convicted of a third violation of this section
28 shall be sentenced to serve not less than sixty consecutive days in jail,
29 is not eligible for probation or suspension of execution of sentence until
30 the entire sentence is served and shall complete an appropriate ~~court~~
31 ~~ordered~~ COURT-ORDERED education or treatment program.

32 4. A person who has previously been convicted of three or more
33 violations of this section and who commits a subsequent violation of this
34 section is guilty of a class 5 felony, shall be sentenced to serve not
35 less than one hundred eighty consecutive days in jail and is not eligible
36 for probation or suspension of execution of sentence until the entire
37 sentence is served. This paragraph does not prohibit a person from being
38 sentenced to serve a period of incarceration in the state department of
39 corrections.

40 F. A PERSON WHO VIOLATES SUBSECTION A, PARAGRAPH 2 OF THIS SECTION
41 IS GUILTY OF A CLASS 6 FELONY, EXCEPT THAT:

42 1. A PERSON WHO IS CONVICTED OF A FIRST VIOLATION OF THIS SECTION
43 SHALL BE SENTENCED TO SERVE NOT LESS THAN FIFTEEN CONSECUTIVE DAYS IN JAIL
44 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
45 UNTIL THE ENTIRE SENTENCE IS SERVED.

46 2. A PERSON WHO IS CONVICTED OF A SECOND VIOLATION OF THIS SECTION
47 SHALL BE SENTENCED TO SERVE NOT LESS THAN THIRTY CONSECUTIVE DAYS IN JAIL

1 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
2 UNTIL THE ENTIRE SENTENCE IS SERVED.

3 3. A PERSON WHO IS CONVICTED OF A THIRD VIOLATION OF THIS SECTION
4 SHALL BE SENTENCED TO SERVE NOT LESS THAN SIXTY CONSECUTIVE DAYS IN JAIL,
5 IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL
6 THE ENTIRE SENTENCE IS SERVED AND SHALL COMPLETE AN APPROPRIATE
7 COURT-ORDERED EDUCATION OR TREATMENT PROGRAM.

8 4. A PERSON WHO HAS PREVIOUSLY BEEN CONVICTED OF THREE OR MORE
9 VIOLATIONS OF THIS SECTION AND WHO COMMITS A SUBSEQUENT VIOLATION OF THIS
10 SECTION IS GUILTY OF A CLASS 4 FELONY, SHALL BE SENTENCED TO SERVE NOT
11 LESS THAN ONE HUNDRED EIGHTY CONSECUTIVE DAYS IN JAIL AND IS NOT ELIGIBLE
12 FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL THE ENTIRE
13 SENTENCE IS SERVED. THIS PARAGRAPH DOES NOT PROHIBIT A PERSON FROM BEING
14 SENTENCED TO SERVE A PERIOD OF INCARCERATION IN THE STATE DEPARTMENT OF
15 CORRECTIONS.

16 Sec. 5. Section 41-1736, Arizona Revised Statutes, is amended to
17 read:

18 41-1736. Anti-human trafficking grant fund

19 The anti-human trafficking grant fund is established consisting of
20 monies COLLECTED PURSUANT TO SECTION 12-116.13 AND MONIES appropriated by
21 the legislature. Monies in the fund are continuously appropriated. The
22 department shall administer the fund and distribute monies from the fund
23 to programs to reduce human trafficking in this state. To be eligible for
24 grant monies, an anti-human trafficking program shall do ~~either~~ ONE of the
25 following:

26 1. Work to reduce human trafficking by providing assistance and
27 analytical services to law enforcement agencies.

28 2. Provide services to victims OF HUMAN TRAFFICKING. ~~and~~

29 3. PROVIDE training to law enforcement agencies, prosecutorial
30 agencies and the public on preventing and identifying human trafficking.

31 Enroll and engross to conform

32 Amend title to conform

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